

COMMONWEALTH OF MASSACHUSETTS

NORFOLK, ss.

SUPERIOR COURT No. 2582CV01341

CITIZENS BANK, NA F/K/A RBS CITIZENS NA,

Plaintiff,

v.

RAMON O. RODRIGUEZ AKA RAMON O. RODRIQUEZ, JAVIER RODRIGUEZ, UNITED STATES OF AMERICA ACTING THROUGH THE SECRETARY OF HOUSING AND URBAN DEVELOPMENT (“HUD”), LOWELL COMMUNITY LOAN FUND, INC. D/B/A MILL CITIES COMMUNITY INVESTMENTS, A NON-PROFIT CORPORATION, MASSACHUSETTS HOUSING FINANCE

Defendants,

COMPLAINT FOR AUTHORITY TO FORECLOSE MORTGAGE

Introduction

1. This is an action by which the Plaintiff, Citizens Bank, NA f/k/a RBS Citizens NA, seeks authority to foreclose its mortgage pursuant to the power of sale contained in said mortgage and by entry and possession, in accordance with the Servicemembers Civil Relief Act and the laws of the Commonwealth of Massachusetts.

Parties

2. The Plaintiff, Citizens Bank, NA f/k/a RBS Citizens NA, is a duly incorporated financial institution authorized to do business in Massachusetts and having its principal place of business at 1 Citizens Plaza, Providence, RI 02903.
3. The Defendants, Javier Rodriguez and Ramon O. Rodriguez aka Ramon O. Rodriquez are Massachusetts residents, with a last and usual place of residence and owner of record at 55 Congress Place, Dedham, MA 02026, consisting of a parcel containing a residence by virtue of a deed recorded with the Norfolk District Registry of Deeds (the “Registry”) in Book 41474 at Page 35 (the “Vesting Deed”). A true and accurate copy of the Vesting Deed is attached hereto as **Exhibit A**.
4. The Defendant, United States of America Acting through the Secretary of Housing and Urban Development (“HUD”), whose address is 451 Seventh Street SW, Washington, D.C. 20410, has an interest in this Property by virtue of a Partial Claim Mortgage given by Ramon O. Rodriguez to the Secretary of Housing and Urban Development, dated June 29, 2024, and recorded with the Norfolk County Registry of Deeds on July 31, 2024 in Book 41915 at Page 537. No monetary relief is being sought from this Defendant. See Attached **Exhibit B**.
5. The Defendant, Lowell Community Loan Fund, Inc. d/b/a Mill Cities Community Investments, a Non-Profit Corporation, whose address is 155 Federal Street Suite 700, Boston, MA 02110, has an interest in this Property by virtue of a Mortgage given by Ramon O. Rodriguez to Mortgage Electronic Registration Systems, Inc., as nominee for Lowell Community Loan Fund, Inc. d/b/a Mill Cities Community Investments, a Non-Profit Corporation, dated September 10, 2014, and recorded with the Norfolk County Registry of Deeds on September 17, 2014 in Book 32557 at Page 2. No monetary relief is being sought from this Defendant. See Attached **Exhibit C**.

6. The Defendant, Massachusetts Housing Finance Agency (hereinafter "MassHousing") is a party that may have an interest in the subject property by virtue of a Mortgage Rider entitled "Get the Lead Out Program" - Owner Occupied Uniform Mortgage Rider is dated September 10, 2014 and recorded in the Norfolk County Registry of Deeds at Book 32557, Page 14. The Rider is attached to a certain mortgage from Ramon O. Rodriguez to Lowell Community Loan Fund Inc. d/b/a Mill Cities Community Investments of same date recorded in said Registry of deeds at Book 32557 Page 2 . Said Rider indicates that the loan was expected to be assigned to MassHousing. No monetary relief is being sought from this Defendant. See Attached **Exhibit C**.

Facts

7. The Plaintiff is the holder of a promissory note given by Ramon O. Rodriguez to RBS Citizens, N.A., dated September 28, 2012, which promissory note is secured by a mortgage of the same date given by Ramon O. Rodriguez to Mortgage Electronic Registration Systems, Inc., as mortgagee, as nominee for RBS Citizens, N.A, its successors and assigns, recorded at the Norfolk County Registry of Deeds at Book 30499 at Page 166, covering 55 Congress Place, Dedham, MA 02026 (hereinafter "the Premises"). A copy of the Note is attached hereto as **Exhibit D**.
8. The Plaintiff is the holder of said mortgage by assignment dated February 20, 2020 and recorded in the Norfolk County Registry of Deeds at Book 37619 at Page 311.
9. A copy of the mortgage and assignment are attached hereto as **Exhibit E and F**.
10. The Premises are more particularly described in said mortgage as follows:

THE LAND WITH THE BUILDINGS THEREON SITUATED IN DEDHAM, NORFOLK COUNTY, MASSACHUSETTS, BEING SHOWN AS PARCEL MARKED "GEORGE LORIO" (ON A PLAN OF LAND OF JACOB AND GEORGE LORIO, OF BUSSEY STREET, SURVEYED OCTOBER 24, 1905, E. WORTHINGTON, ENGINEER, RECORDED WITH NORFOLK COUNTY REGISTRY OF DEEDS AT BOOK 1014, PAGE 256), BOUNDED AND DESCRIBED AS FOLLOWS:

SOUTHEASTERLY: BY A PRIVATE WAY (NOW KNOWN AS BUSSEY PLACE), THIRTY-EIGHT AND 3/10 (38.3) FEET,

SOUTHWESTERLY: BY A FIFTEEN FOOT PASSAGEWAY (NOW KNOWN AS BUSSEY PLACE), ONE HUNDRED THIRTY-FIVE AND 8/10 (135.8) FEET, MORE OR LESS,

NORTHWESTERLY: BY LAND NOW OR FORMERLY OF CHARLES ELS AND GEORGE LORIO, SHOWN ON PLAN, FIFTY-NINE AND 5/10 (59.5) FEET, AND

NORTHEASTERLY: BY PARCEL MARKED "JACOB LORIO," SHOWN ON PLAN, ONE HUNDRED FORTY-SIX AND 4/10 (146.4) FEET.

CONTAINING 6,813 SQUARE FEET OF LAND, ACCORDING TO SAID PLAN.

FOR TITLE REFERENCE SEE DEED RECORDED HERewith.

11. To the best of the Plaintiff's knowledge, and upon information and belief, no defendant is in the military service within the meaning of the Servicemembers Civil Relief Act, as amended.
12. The Plaintiff alleges upon information and belief that the defendant is the only persons interested in the equity of redemption of the property covered by the mortgage described in Paragraph 7 of this Complaint so far as appeared of record in the said Registry of Deeds or as known to the Plaintiff.

13. Plaintiff realleges paragraphs 1-9 as if set forth fully herein.
14. The Plaintiff seeks to foreclosure said mortgage described in said Paragraph 7 to protect its interest as secured thereby for breach of the conditions thereof and desires to comply with the provisions of the Servicemembers Civil Relief Act, as amended.
15. Plaintiff re-alleges and incorporates the allegations of the preceding paragraphs as if fully contained herein.

WHEREFORE, the Plaintiff prays that this honorable Court grant it the following relief:

- A. Issue an order of notice ordering the defendant to appear and answer to this complaint;
- B. Issue a decree authorizing the Plaintiff to make entry for the purpose of foreclosing and an order authorizing the Plaintiff to foreclose the mortgage described in paragraph 7 of this complaint by a sale under the power of sale therein contained;
- C. Grant such and further relief as to the Court may deem meet and equitable.

Citizens Bank, NA f/k/a RBS Citizens NA
By its Attorney,

/s/Patrick D. Beaton

Patrick D. Beaton, Esq.
BBO #661215

Date: 11/28/2025

From the Office of:
Albertelli Law

400 TradeCenter Suite 5900
Woburn, MA 01801
813-221-4743
813-221-171 (Fax)

Office File Number: 25-013247

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DEED

I, Ramon O. Rodriguez, also known as Ramon O. Rodriquez, a married person, of 55 Congress Place, Dedham, Norfolk County, Massachusetts, hereinafter called the "Grantor",

for consideration paid and in full consideration of One (\$1.00) Dollar

grants to Javier Rodriquez, an unmarried person, of 55 Congress Place, Dedham, Norfolk County, Massachusetts hereinafter called the "Grantee",

with Quitclaim Covenants

The land with the buildings thereon situated in Dedham, Norfolk County, Massachusetts, being shown as parcel marked "George Lorio" (on a plan of land of Jacob and George Lorio, of Bussey Street, surveyed October 24, 1905, E. Worthington, Engineer, recorded with Norfolk County Registry of Deeds at Boon 1014, Page 256), being bounded and described as follows:

SOUTHEASTERLY: by a private way (now known as Bussey Place), thirty-eight and 3/10 (38.3) feet;

SOUTHWESTERLY: by a fifteen foot passageway (now known as Bussey Place), one hundred thirty-five and 8/10 (135.8) feet, more or less;

NORTHWESTERLY: by land now or formerly of Charles Els and George Lorio, shown on a plan, fifty-nine and 5/10 (59.5) feet; and

NORTHEASTERLY: by parcel marked "Jacob Lorio", shown on plan, one hundred forty-six and 4/10 (146.4) feet.

Containing 6,813 square feet of land, more or less, according to said plan.

The Grantor and the Grantor's spouse, Arelis Rodriguez also known as Arelis Rodriquez, does hereby voluntarily release all rights of Homestead, if any, as set forth in M. G. L. Chapter 188 and state that there is no other persons entitled to such rights, However, Grantor and the Grantor's spouse DOES NOT waive any Homestead rights pursuant to G. L. c.188 Section 11 relating to the protection of any and all proceeds.

Meaning and intending to convey the premises conveyed to the Grantor by deed dated August 18, 2012 and recorded with the Norfolk County Registry of Deeds in Book 30499, Page 164.

**TITLE TO THIS PROPERTY WAS NOT EXAMINED IN
CONNECTION WITH THE PREPARATION AND RECORDING
OF THIS DEED**

MASSACHUSETTS STATE EXCISE TAX
Norfolk Registry of Deeds
Date: 10-24-2023 @ 11:29am
Ctl#: 209 Doc#: 69580
Fee: \$0.00 Cons: \$1.00

WILLIAM P. O'DONNELL, REGISTER
NORFOLK COUNTY REGISTRY OF DEEDS
RECEIVED & RECORDED ELECTRONICALLY

Property Address: 55 Congress Place, Dedham, MA

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WITNESS our hands and seal this 24th day of October, 2023.

Ramon O. Rodriguez Ramon O. Rodriguez
Ramon O. Rodriguez, also known as Ramon O. Rodriquez

Arelis Rodriguez Arelis Rodriguez
Arelis Rodriguez, also known as Arelis Rodriquez

COMMONWEALTH OF MASSACHUSETTS

Suffolk, SS.

On this 24th day of October, 2023, before me, the undersigned notary public, personally appeared, Ramon O. Rodriguez, also known as Ramon O. Rodriquez and Arelis Rodriguez, also known as Arelis Rodriguez proved to me through satisfactory evidence of identification, which was MA ID Card and MA Driver's License, to be the persons whose names are signed on the preceding or attached document, and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of their knowledge and belief and acknowledged they signed the foregoing document voluntarily, as their free act and deed .

[Signature]
Notary Public

My Commission Expires:



Kathleen M. Allen
NOTARY PUBLIC
Commonwealth of
Massachusetts
My Commission Expires
07/12/2030

Bk 41915 Pg537 #49021
07-31-2024 @ 09:00a

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This Document Prepared By:
VEERESH KUMAR BANGALORE UMESH
CITIZENS BANK, N.A.
10561 TELEGRAPH RD
GLEN ALLEN, VA 23059
(877) 745-7364

When Recorded Mail To:
CITIZENS BANK, N.A.
P.O. BOX 42111
PROVIDENCE, RI 02940

Source of Title: **INSTRUMENT NO. 69580 BOOK 41474, AT PAGE(S) 35**
Tax/Parcel #: **79-155**

_____[Space Above This Line for Recording Data]_____
FHA Case No.: _____
Loan No: _____

PARTIAL CLAIMS MORTGAGE

THIS SUBORDINATE MORTGAGE ("Security Instrument") is given on **JUNE 29, 2024**. The mortgagor is **RAMON O. RODRIGUEZ** ("Borrower"), whose address is **55 CONGRESS PLACE, DEDHAM, MASSACHUSETTS 02026**. This Security Instrument is given to the **Secretary of Housing and Urban Development**, whose address is **451 Seventh Street SW, Washington, DC 20410** ("Lender"). Borrower owes Lender the principal sum of \$_____. This debt is evidenced by Borrower's note dated the same date as this Security Instrument ("Note"), which provides for the full debt, if not paid earlier, due and payable on **OCTOBER 1, 2042**.

This Security Instrument secures to Lender: (a) the repayment of the debt evidenced by the Note, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, advanced under Paragraph 7 to protect the security of this Security Instrument; and (c) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower does hereby mortgage, warrant, grant and convey to the Lender, with power of sale, the following described property located in the County of **NORFOLK**, State of **MASSACHUSETTS**:

which has the address of, **55 CONGRESS PLACE, DEDHAM, MASSACHUSETTS 02026** (herein "Property Address");

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF:

Tax Parcel No. **79-155**

Partial Claims Agreement 12052023_105

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date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 7, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If the Lender's interest in this Security Instrument is held by the Secretary and the Secretary requires immediate payment in full under Paragraph 4 of the Subordinate Note, the Secretary may invoke the non-judicial power of sale provided in the Single Family Mortgage Foreclosure Act of 1994 ("Act") (12 U.S.C. § 3751 *et seq.*) by requesting a foreclosure commissioner designated under the Act to commence foreclosure and to sell the Property as provided by the Act. Nothing in the preceding sentence shall deprive the Secretary of any rights otherwise available to a Lender under this Paragraph or applicable law.



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BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument.

Ramon O. Rodriguez
Borrower: RAMON O. RODRIGUEZ

7-24-2024
Date

[Space Below This Line for Acknowledgments]

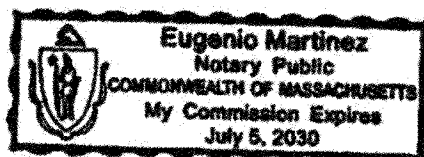
BORROWER ACKNOWLEDGMENT

STATE/Commonwealth of MASSACHUSETTS
COUNTY OF Norfolk

On this 24th day of July, 20 24, before me, the undersigned notary public, personally appeared RAMON O. RODRIGUEZ, proved to me through satisfactory evidence of identification, which were Massachusetts Driver License (description of Identify Card or Document), to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he/she/they signed it voluntarily for its stated purpose.

Eugenio Martinez
Signature of Notary Public

Notary Printed Name: Eugenio Martinez



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EXHIBIT A

BORROWER(S): RAMON O. RODRIGUEZ

LOAN NUMBER: [REDACTED]

LEGAL DESCRIPTION:

The land referred to in this document is situated in the CITY OF DEDHAM, COUNTY OF NORFOLK, STATE OF MASSACHUSETTS, and described as follows:

BEING SHOWN AS PARCEL MARKED "GEORGE LORIO" (ON A PLAN OF LAND OF JACOB AND GEORGE LORIO, OF BUSSEY STREET, SURVEYED OCTOBER 24, 1905, E. WORTHINGTON, ENGINEER, RECORDED WITH NORFOLK COUNTY REGISTRY OF DEEDS AT BOOK 1014, PAGE 256), BOUNDED AND DESCRIBED AS FOLLOWS: SOUTHEASTERLY: BY A PRIVATE WAY (NOW KNOWN AS BUSSEY PLACE), THIRTY-EIGHT AND 3/10 (38.3) FEET. SOUTHWESTERLY: BY A FIFTEEN FOOT PASSAGEWAY (NOW KNOWN AS BUSSEY PLACE), ONE HUNDRED THIRTY-FIVE AND 8/10 (135.8) FEET, MORE OR LESS, NORTHWESTERLY: BY LAND NOW OR FORMERLY OF CHARLES ELS AND GEORGE LORIO, SHOWN ON PLAN, FIFTY-NINE AND 5/10 (59.5) FEET, AND NORTHEASTERLY: BY PARCEL MARKED "JACOB LORIO", SHOWN ON PLAN, ONE HUNDRED FORTY-SIX AND 4/10 (146.4) FEET. CONTAINING 6,813 SQUARE FEET OF LAND, ACCORDING TO SAID PLAN.

Being the same property conveyed to JAVIER RODRIQUEZ, AN UNMARRIED PERSON from RAMON O. RODRIGUEZ, ALSO KNOWN AS RAMON O. RODRIQUEZ, A MARRIED PERSON by Deed dated 10/24/2023 and recorded on 10/24/2023 in the Register of Deed for NORFOLK County, MASSACHUSETTS in Deed Instrument 69580 Deed Book: 41474, Page: 35

ALSO KNOWN AS: 55 CONGRESS PLACE, DEDHAM, MASSACHUSETTS 02026



Bk 32557 Pg 2 #80634
09-17-2014 @ 11:32a

After Recording Return To: N O T
LOWELL COMMUNITY LOAN FUND INC. DEAMILL CITIES COMMUNITY INVESTMENTS
450 MERRIMACK STREET
LOWELL, MASSACHUSETTS 01854
Loan Number: [REDACTED] C O P Y

RECEIVED AND RECORDED
NORFOLK COUNTY
REGISTRY OF DEEDS
DEDHAM, MA

CERTIFY

William P. O'Donnell
WILLIAM P. O'DONNELL, REGISTER

Property Address:
55 CONGRESS PLACE
DEDHAM, MASSACHUSETTS 02026

[Space Above This Line For Recording Data]

MORTGAGE

MIN: [REDACTED]

MERS Phone: 888-679-6377

THIS MORTGAGE is made this 10th day of SEPTEMBER, 2014, between the
Mortgagor, RAMON O RODRIGUEZ INDIVIDUALLY

(herein "Borrower"),
and the Mortgagee, Mortgage Electronic Registration Systems, Inc. ("MERS"), (solely as nominee for Lender, as
hereinafter defined, and Lender's successors and assigns). MERS is organized and existing under the laws of
Delaware, and has an address and telephone number of P.O. Box 2026, Flint, MI 48501-2026, tel. (888) 679-MERS.
LOWELL COMMUNITY LOAN FUND INC. DEAMILL CITIES COMMUNITY INVESTMENTS, A NON-PROFIT CORPORATION
is organized and existing under the laws of MASSACHUSETTS and has an address of
450 MERRIMACK STREET, LOWELL, MASSACHUSETTS 01854

(herein "Lender").

"Mortgage Broker" is No mortgage broker
Mortgage Broker's post office address is No mortgage broker

and Mortgage Broker's license number is No mortgage broker
"Mortgage Loan Originator" is FRANCISCO J. CARVALHO
Mortgage Loan Originator's post office address is No mortgage loan originator

and Mortgage Loan Originator's license number is MLO#158129

WHEREAS, Borrower is indebted to Lender in the principal sum of U.S. \$ [REDACTED] which
indebtedness is evidenced by Borrower's note dated SEPTEMBER 10, 2014 and extensions and
renewals thereof (herein "Note"), providing for monthly installments of principal and interest, with the balance of
the indebtedness, if not sooner paid, due and payable on ~~XXXXXX~~ due upon sale or
transfer

TO SECURE to Lender the repayment of the indebtedness evidenced by the Note, with interest thereon; the
payment of all other sums, with the interest thereon, advanced in accordance herewith to protect the security of this

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Mortgage; and the performance of the covenants and agreements of Borrower therein contained, Borrower does hereby mortgage, grant and convey to MERS (solely as nominee for Lender and Lender's successors and assigns) and to the successors and assigns of MERS, with power of sale, the following described property located in the County of NORFOLK, State of Massachusetts:
SEE LEGAL DESCRIPTION ATTACHED HERETO AND MADE A PART HEREOF AS EXHIBIT "A".

which has the address of

55 CONGRESS PLACE

[Street]

DEDHAM

, Massachusetts

02026

(herein "Property Address");

[City]

[Zip Code]

TOGETHER with all the improvements now or hereafter erected on the property, and all easements, rights, appurtenances and rents, all of which shall be deemed to be and remain a part of the property covered by this Mortgage; and all of the foregoing, together with said property (or the leasehold estate if this Mortgage is on a leasehold) are hereinafter referred to as the "Property." Borrower understands and agrees that MERS holds only legal title to the interests granted by Borrower in this Mortgage; but, if necessary to comply with law or custom, MERS, (as nominee for Lender and Lender's successors and assigns), has the right: to exercise any or all of those interests, including, but not limited to, the right to foreclose and sell the Property; and to take any action required of Lender including, but not limited to, releasing or cancelling this Mortgage.

BORROWER COVENANTS that Borrower is lawfully seized of the estate hereby conveyed and has the right to mortgage, grant and convey the Property, and that the Property is unencumbered, except for encumbrances of record. Borrower covenants that Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to encumbrances of record.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. **Payment of Principal and Interest.** Borrower shall promptly pay when due the principal and interest indebtedness evidenced by the Note and late charges as provided in the Note.

2. **Funds for Taxes and Insurance.** Subject to applicable law or a written waiver by Lender, Borrower shall pay to Lender on the day monthly payments of principal and interest are payable under the Note, until the Note is paid in full, a sum (herein "Funds") equal to one-twelfth of the yearly taxes and assessments (including condominium and planned unit development assessments, if any) which may attain priority over this Mortgage and ground rents on the Property, if any, plus one-twelfth of yearly premium installments for hazard insurance, plus one-twelfth of yearly premium installments for mortgage insurance, if any, all as reasonably estimated initially and from time to time by Lender on the basis of assessments and bills and reasonable estimates thereof. Borrower shall not be obligated to make such payments of Funds to Lender to the extent that Borrower makes such payments to the holder of a prior mortgage or deed of trust if such holder is an institutional lender.

If Borrower pays Funds to Lender, the Funds shall be held in an institution the deposits or accounts of which are insured or guaranteed by a Federal or state agency (including Lender if Lender is such an institution). Lender shall apply the Funds to pay said taxes, assessments, insurance premiums and ground rents. Lender may not charge

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for so holding and applying the Funds, analyzing said account or verifying and compiling said assessments and bills, unless Lender pays Borrower interest on the Funds and applicable law permits Lender to make such a charge. Borrower and Lender may agree in writing at the time of execution of this Mortgage that interest on the Funds shall be paid to Borrower, and unless such agreement is made or applicable law requires such interest to be paid, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds showing credits and debits to the Funds and the purpose for which each debit to the Funds was made. The Funds are pledged as additional security for the sums secured by this Mortgage.

If the amount of the Funds held by Lender, together with the future monthly installments of Funds payable prior to the due dates of taxes, assessments, insurance premiums and ground rents, shall exceed the amount required to pay said taxes, assessments, insurance premiums and ground rents as they fall due, such excess shall be, at Borrower's option, either promptly repaid to Borrower or credited to Borrower on monthly installments of Funds. If the amount of the Funds held by Lender shall not be sufficient to pay taxes, assessments, insurance premiums and ground rents as they fall due, Borrower shall pay to Lender any amount necessary to make up the deficiency in one or more payments as Lender may require.

Upon payment in full of all sums secured by this Mortgage, Lender shall promptly refund to Borrower any Funds held by Lender. If under paragraph 17 hereof the Property is sold or the Property is otherwise acquired by Lender, Lender shall apply, no later than immediately prior to the sale of the Property or its acquisition by Lender, any Funds held by Lender at the time of application as a credit against the sums secured by this Mortgage.

3. Application of Payments. Unless applicable law provides otherwise, all payments received by Lender under the Note and paragraphs 1 and 2 hereof shall be applied by Lender first in payment of amounts payable to Lender by Borrower under paragraph 2 hereof, then to interest payable on the Note, and then to the principal of the Note.

4. Prior Mortgages and Deeds of Trust; Charges; Liens. Borrower shall perform all of Borrower's obligations under any mortgage, deed of trust or other security agreement with a lien which has priority over this Mortgage, including Borrower's covenants to make payments when due. Borrower shall pay or cause to be paid all taxes, assessments and other charges, fines and impositions attributable to the Property which may attain a priority over this Mortgage, and leasehold payments or ground rents, if any.

5. Hazard Insurance. Borrower shall keep the improvements now existing or hereafter erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and such other hazards as Lender may require and in such amounts and for such periods as Lender may require.

The insurance carrier providing the insurance shall be chosen by Borrower subject to approval by Lender; provided, that such approval shall not be unreasonably withheld. All insurance policies and renewals thereof shall be in a form acceptable to Lender and shall include a standard mortgage clause in favor of and in a form acceptable to Lender. Lender shall have the right to hold the policies and renewals thereof, subject to the terms of any mortgage, deed of trust or other security agreement with a lien which has priority over this Mortgage.

In the event of loss, Borrower shall give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower.

If the Property is abandoned by Borrower, or if Borrower fails to respond to Lender within 30 days from the date notice is mailed by Lender to Borrower that the insurance carrier offers to settle a claim for insurance benefits, Lender is authorized to collect and apply the insurance proceeds at Lender's option either to restoration or repair of the Property or to the sums secured by this Mortgage.

6. Preservation and Maintenance of Property; Leaseholds; Condominiums; Planned Unit Developments. Borrower shall keep the Property in good repair and shall not commit waste or permit impairment or deterioration of the Property and shall comply with the provisions of any lease if this Mortgage is on a leasehold. If this Mortgage is on a unit in a condominium or a planned unit development, Borrower shall perform all of Borrower's obligations under the declaration or covenants creating or governing the condominium or planned unit development, the by-laws and regulations of the condominium or planned unit development, and constituent documents.

7. Protection of Lender's Security. If Borrower fails to perform the covenants and agreements contained in this Mortgage, or if any action or proceeding is commenced which materially affects Lender's interest in the Property, then Lender, at Lender's option, upon notice to Borrower, may make such appearances, disburse such sums, including

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reasonable attorneys' fees, and take such action as is necessary to protect Lender's interest. If Lender required mortgage insurance as a condition of making the loan secured by this Mortgage, Borrower shall pay the premiums required to maintain such insurance in effect until such time as the requirement for such insurance terminates in accordance with Borrower's and Lender's written agreement of applicable law.

Any amounts disbursed by Lender pursuant to this paragraph 7, with interest thereon, at the Note rate, shall become additional indebtedness of Borrower secured by this Mortgage. Unless Borrower and Lender agree to other terms of payment, such amounts shall be payable upon notice from Lender to Borrower requesting payment thereof. Nothing contained in this paragraph 7 shall require Lender to incur any expense or take any action hereunder.

8. Inspection. Lender may make or cause to be made reasonable entries upon and inspections of the Property, provided that Lender shall give Borrower notice prior to any such inspection specifying reasonable cause therefor related to Lender's interest in the Property.

9. Condemnation. The proceeds of any award or claim for damages, direct or consequential, in connection with any condemnation or other taking of the Property, or part thereof, or for conveyance in lieu of condemnation, are hereby assigned and shall be paid to Lender, subject to the terms of any mortgage, deed of trust or other security agreement with a lien which has priority over this Mortgage.

10. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time for payment or modification of amortization of the sums secured by this Mortgage granted by Lender to any successor in interest of Borrower shall not operate to release, in any manner, the liability of the original Borrower and Borrower's successors in interest. Lender shall not be required to commence proceedings against such successor or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Mortgage by reason of any demand made by the original Borrower and Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy hereunder, or otherwise afforded by applicable law, shall not be a waiver of or preclude the exercise of any such right or remedy.

11. Successors and Assigns Bound; Joint and Several Liability; Co-signers. The covenants and agreements herein contained shall bind, and the rights hereunder shall inure to, the respective successors and assigns of Lender and Borrower, subject to the provisions of paragraph 16 hereof. All covenants and agreements of Borrower shall be joint and several. Any Borrower who co-signs this Mortgage, but does not execute the Note, (a) is co-signing this Mortgage only to mortgage, grant and convey that Borrower's interest in the Property to Lender under the terms of this Mortgage, (b) is not personally liable on the Note or under this Mortgage, and (c) agrees that Lender and any other Borrower hereunder may agree to extend, modify, forbear, or make any other accommodations with regard to the terms of this Mortgage or the Note without that Borrower's consent and without releasing that Borrower or modifying this Mortgage as to that Borrower's interest in the Property.

12. Notice. Except for any notice required under applicable law to be given in another manner, (a) any notice to Borrower provided for in this Mortgage shall be given by delivering it or by mailing such notice by first class mail addressed to Borrower at the Property Address or at such other address as Borrower may designate by notice to Lender as provided herein, and (b) any notice to Lender shall be given by first class mail to Lender's address stated herein or to such other address as Lender may designate by notice to Borrower as provided herein. Any notice provided for in this Mortgage shall be deemed to have been given to Borrower or Lender when given in the manner designated herein.

13. Governing Law; Severability. The state and local laws applicable to this Mortgage shall be the laws of the jurisdiction in which the Property is located. The foregoing sentence shall not limit the applicability of Federal law to this Mortgage. In the event that any provision or clause of this Mortgage or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Mortgage or the Note which can be given effect without the conflicting provision, and to this end the provisions of this Mortgage and the Note are declared to be severable. As used herein, "costs," "expenses" and "attorneys' fees" include all sums to the extent not prohibited by applicable law or limited herein.

14. Borrower's Copy. Borrower shall be furnished a conformed copy of the Note and of this Mortgage at the time of execution or after recordation hereof.

ROB

15. Rehabilitation Loan Agreement. Borrower shall fulfill all of Borrower's obligations under any home rehabilitation, improvement, repair, or other loan agreement which Borrower enters into with Lender. Lender, at Lender's option, may require Borrower to execute and deliver to Lender, in a form acceptable to Lender, an assignment of any rights, claims or defenses which Borrower may have against parties who supply labor, materials or services in connection with improvements made to the Property.

16. Transfer of the Property or a Beneficial Interest in Borrower. If all or any part of the Property or any interest in it is sold or transferred (or if a beneficial interest in Borrower is sold or transferred and Borrower is not a natural person) without Lender's prior written consent, Lender may, at its option, require immediate payment in full of all sums secured by this Mortgage. However, this option shall not be exercised by Lender if exercise is prohibited by federal law as of the date of this Mortgage.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is delivered or mailed within which Borrower must pay all sums secured by this Mortgage. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Mortgage without further notice or demand on Borrower.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

17. Acceleration; Remedies. Except as provided in paragraph 16 hereof, upon Borrower's breach of any covenant or agreement of Borrower in this Mortgage, including the covenants to pay when due any sums secured by this Mortgage, Lender prior to acceleration shall give notice to Borrower as provided in paragraph 12 hereof specifying: (1) the breach; (2) the action required to cure such breach; (3) a date, not less than 10 days from the date the notice is mailed to Borrower, by which such breach must be cured; and (4) that failure to cure such breach on or before the date specified in the notice may result in acceleration of the sums secured by this Mortgage and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the nonexistence of a default or any other defense of Borrower to acceleration and sale. If the breach is not cured on or before the date specified in the notice, Lender, at Lender's option, may declare all of the sums secured by this Mortgage to be immediately due and payable without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by applicable law. Lender shall be entitled to collect all reasonable costs and expenses incurred in pursuing the remedies provided in this paragraph 17, including, but not limited to, reasonable attorneys' fees.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower, and to any other person required by applicable law, in the manner provided by applicable law. Lender shall publish the notice of sale and the Property shall be sold in the manner prescribed by applicable law. Lender or Lender's designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all reasonable costs and expenses of the sale, including reasonable attorneys' fees and costs of title evidence; (b) to all sums secured by this Mortgage; and (c) the excess, if any, to the person or persons legally entitled thereto.

18. Borrower's Right to Reinstate. Notwithstanding Lender's acceleration of the sums secured by this Mortgage due to Borrower's breach, Borrower shall have the right to have any proceedings begun by Lender to enforce this Mortgage discontinued at any time prior to the earlier to occur of (i) sale of the Property pursuant to the power of sale contained in the Mortgage or (ii) entry of a judgment enforcing the Mortgage if: (a) Borrower pays Lender all sums which would be then due under this Mortgage and the Note had no acceleration occurred; (b) Borrower cures all breaches of any other covenants or agreements of Borrower contained in this Mortgage; (c) Borrower pays all reasonable expenses incurred by Lender in enforcing the covenants and agreements of Borrower contained in this Mortgage, and in enforcing Lender's remedies as provided in paragraph 17 hereof, including, but not limited to, reasonable attorneys' fees; and (d) Borrower takes such action as Lender may reasonably require to assure that the lien of this Mortgage, Lender's interest in the Property and Borrower's obligation to pay the sums secured by this Mortgage shall continue unimpaired. Upon such payment and cure by Borrower, this Mortgage and the obligations secured hereby shall remain in full force and effect as if no acceleration had occurred.

Handwritten signature: BOR

19. Assignment of Rents; Lender in Possession. As additional security hereunder, Borrower hereby assigns to Lender the rents of the Property, provided that Borrower shall, prior to acceleration under paragraph 17 hereof or abandonment of the Property, have the right to collect and retain such rents as they become due and payable.

Upon acceleration under paragraph 17 hereof or abandonment of the Property, Lender shall be entitled to enter upon, take possession of and manage the Property and to collect the rents of the Property including those past due. All rents collected by Lender shall be applied first to payment of the costs of management of the Property and collections of rents, including, but not limited to, reasonable attorneys' fees, and then to the sums secured by this Mortgage. Lender shall be liable to account only for those rents actually received.

20. Release. Upon payment of all sums secured by this Mortgage, Lender shall discharge this Mortgage without cost to Borrower. Borrower shall pay all costs of recordation, if any.

21. The following Riders are to be executed by Borrower [check box as applicable]:

- | | | |
|--|---|---|
| ☐ Adjustable Rate Rider | ☐ Condominium Rider | ☐ Second Home Rider |
| ☐ Balloon Rider | ☐ Planned Unit Development Rider | ☐ Other(s) [specify] |
| ☒ 1-4 Family Rider | ☐ Biweekly Payment Rider | |

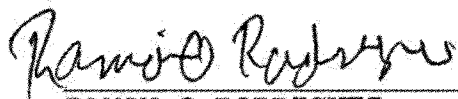
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ROR

NO REQUEST FOR NOTICE OF DEFAULT
AND FORECLOSURE UNDER SUPERIOR
MORTGAGES OR DEEDS OF TRUST
OFFICIAL OFFICIAL

Borrower and Lender request the holder of any mortgage, deed of trust or other encumbrance with a lien which has priority over this Mortgage to give Notice to Lender, at Lender's address set forth on page one of this Mortgage, of any default under the superior encumbrance and of any sale or other foreclosure action.

IN WITNESS WHEREOF, Borrower has executed and acknowledges receipt of this Mortgage.



RAMON O RODRIGUEZ

(Seal)
-Borrower

(Seal)
-Borrower

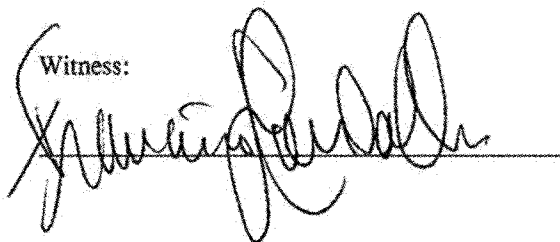
(Seal)
-Borrower

(Seal)
-Borrower

(Seal)
-Borrower

(Seal)
-Borrower

Witness:



Witness:

NOTE [Space Below This Line For Acknowledgment] NOTE
A N A N
Commonwealth of MASSACHUSETTS OFFICIAL
County of Middlesex COPY COPY

On this 10th day of September 2014, before me, the undersigned Notary Public,
personally appeared RAMON O RODRIGUEZ

proved to me through satisfactory evidence of identification, which were Ma ID# [REDACTED]

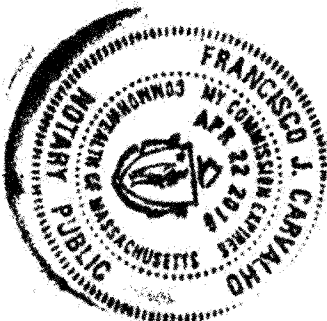
to be the person whose name is signed on the preceding or attached document, and acknowledged to me that (he) (she)
signed it voluntarily for its stated purpose.

☐ (as partner for _____,
a partnership)

☐ (as _____ for _____,
a corporation)

☐ (as attorney in fact for _____,
the principal)

☐ (as _____ for _____,
(a) (the)



(Seal)

Francisco J. Carvalho
Notary Public



FRANCISCO J. CARVALHO
Notary Public (Printed Name)
COMMONWEALTH OF MASSACHUSETTS
MY COMMISSION EXPIRES
APRIL 22, 2016

My commission expires: _____

Loan Originator: FRANCISCO J. CARVALHO, NMLSR ID MLO#158129
Loan Originator Organization: LOWELL COMMUNITY LOAN FUND, NMLSR ID 140913

Property: 55 Congress Place, Dedham, MA 02026

ROA

N O T

N O T

G. ASSIGNMENT OF LEASES. Upon Lender's request, Borrower shall assign to Lender all leases of the Property and all security deposits made in connection with the lease of the Property. Upon the assignment, Lender shall have the right to modify, extend or terminate the existing leases and to execute new leases, in Lender's sole discretion. As used in this paragraph G, the word "lease" shall mean "sublease" if the Security Instrument is on a leasehold.

H. ASSIGNMENT OF RENTS; APPOINTMENT OF RECEIVER; LENDER IN POSSESSION. Borrower absolutely and unconditionally assigns and transfers to Lender all the rents and revenues ("Rents") of the Property, regardless of to whom the Rents of the Property are payable. Borrower authorizes Lender or Lender's agents to collect the Rents, and agrees that each tenant of the Property shall pay the Rents to Lender or Lender's agents. However, Borrower shall receive the Rents until (i) Lender has given Borrower notice of default pursuant to paragraph 21 of the Security Instrument and (ii) Lender has given notice to the tenant(s) that the Rents are to be paid to Lender or Lender's agent. This assignment of Rents constitutes an absolute assignment and not an assignment for additional security only.

If Lender gives notice of breach to Borrower: (i) all Rents received by Borrower shall be held by Borrower as trustee for the benefit of Lender only, to be applied to the sums secured by the Security Instrument; (ii) Lender shall be entitled to collect and receive all of the Rents of the Property; (iii) Borrower agrees that each tenant of the Property shall pay all Rents due and unpaid to Lender or Lender's agents upon Lender's written demand to the tenant; (iv) unless applicable law provides otherwise, all Rents collected by Lender or Lender's agents shall be applied first to the costs of taking control of and managing the Property and collecting the Rents, including, but not limited to, attorney's fees, receiver's fees, premiums on receiver's bonds, repair and maintenance costs, insurance premiums, taxes, assessments and other charges on the Property, and then to the sums secured by the Security Instrument; (v) Lender, Lender's agents or any judicially appointed receiver shall be liable to account for only those Rents actually received; and (vi) Lender shall be entitled to have a receiver appointed to take possession of and manage the Property and collect the Rents and profits derived from the Property without any showing as to the inadequacy of the Property as security.

If the Rents of the Property are not sufficient to cover the costs of taking control of and managing the Property and of collecting the Rents any funds expended by Lender for such purposes shall become indebtedness of Borrower to Lender secured by the Security Instrument pursuant to Uniform Covenant 7.

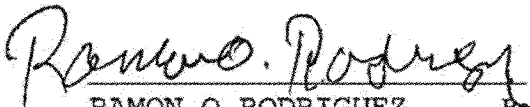
Borrower represents and warrants that Borrower has not executed any prior assignment of the Rents and has not and will not perform any act that would prevent Lender from exercising its rights under this paragraph.

Lender, or Lender's agents or a judicially appointed receiver, shall not be required to enter upon, take control of or maintain the Property before or after giving notice of default to Borrower. However, Lender, or Lender's agents or a judicially appointed receiver, may do so at any time when a default occurs. Any application of Rents shall not cure or waive any default or invalidate any other right or remedy of Lender. This assignment of Rents of the Property shall terminate when all the sums secured by the Security Instrument are paid in full.

I. CROSS-DEFAULT PROVISION. Borrower's default or breach under any note or agreement in which Lender has an interest shall be a breach under the Security Instrument and Lender may invoke any of the remedies permitted by the Security Instrument.

ROR

NOT
BY SIGNING BELOW, ^{A N}Borrower accepts and agrees to the terms and provisions contained in this 1-4
Family Rider. O F F I C I A L O F F I C I A L
C O P Y C O P Y

 (Seal)
RAMON O RODRIGUEZ -Borrower

_____ (Seal)
-Borrower

_____ (Seal)
-Borrower

_____ (Seal)
-Borrower

_____ (Seal)
-Borrower

_____ (Seal)
-Borrower

ROK

NOT
A N
GET THE LEAD OUT PROGRAM
O F F 0% DEFERRED and 2% AMORTIZING
C O P Y OWNER OCCUPIED C O P Y
UNIFORM MORTGAGE RIDER

COMMONWEALTH OF MASSACHUSETTS

Francisco J. Carvalho, ss.

On this 10th day of September 2014, before me, the undersigned notary public,
personally appeared Ramon O. Rodriguez proved to me through satisfactory evidence of
identification, which was Ma 1014 to be the person whose name is signed on the
preceding or attached document, and acknowledged to me that it is his/her free act and deed and that he/she signed it
voluntarily for its stated purpose.

Francisco J. Carvalho
Notary Public:
My commission expires:



FRANCISCO J. CARVALHO
NOTARY PUBLIC
COMMONWEALTH OF MASSACHUSETTS
MY COMMISSION EXPIRES
APRIL 22, 2016

Rodriguez
96

NOTE

Multistate

MIN: [REDACTED]

FHA Case No.
[REDACTED]

September 28, 2012

[Date]

55 Congress place Dedham, MA 02026-
[Property Address]

1. PARTIES

"Borrower" means each person signing at the end of this Note, and the person's successors and assigns. "Lender" means RBS Citizens, N.A.

and its successors and assigns.

2. BORROWER'S PROMISE TO PAY; INTEREST

In return for a loan received from Lender, Borrower promises to pay the principal sum of [REDACTED]
[REDACTED]
Dollars (U.S. \$ [REDACTED]), plus interest, to the order of Lender. Interest will be charged on unpaid principal, from the date of disbursement of the loan proceeds by Lender, at the rate of **three and three-eighths** percent ([REDACTED] per year until the full amount of principal has been paid.

3. PROMISE TO PAY SECURED

Borrower's promise to pay is secured by a mortgage, deed of trust or similar security instrument that is dated the same date as this Note and called the "Security Instrument." The Security Instrument protects the Lender from losses which might result if Borrower defaults under this Note.

4. MANNER OF PAYMENT

(A) Time

Borrower shall make a payment of principal and interest to Lender on the first day of each month beginning on November 1, 2012. Any principal and interest remaining on the first day of October, 2042, will be due on that date, which is called the "Maturity Date."

(B) Place

Payment shall be made at CCO Mortgage, 10561 Telegraph Road, Glen Allen, VA 23059 or at such place as Lender may designate in writing by notice to Borrower.

(C) Amount

Each monthly payment of principal and interest will be in the amount of U.S. \$ 1,533.93. This amount will be part of a larger monthly payment required by the Security Instrument, that shall be applied to principal, interest and other items in the order described in the Security Instrument.

(D) Allonge to this Note for payment adjustments

If an allonge providing for payment adjustments is executed by Borrower together with this Note, the covenants of the allonge shall be incorporated into and shall amend and supplement the covenants of this Note as if the allonge were a part of this Note. [Check applicable box]

☐ Graduated Payment Allonge ☐ Growing Equity Allonge ☐ Other [specify]

ROD

5. BORROWER'S RIGHT TO PREPAY

Borrower has the right to pay the debt evidenced by this Note, in whole or in part, without charge or penalty, on the first day of any month. Lender shall accept prepayment on other days provided that Borrower pays interest on the amount prepaid for the remainder of the month to the extent required by Lender and permitted by regulations of the Secretary. If Borrower makes a partial prepayment, there will be no changes in the due date or in the amount of the monthly payment unless Lender agrees in writing to those changes.

6. BORROWER'S FAILURE TO PAY

(A) Late Charge for Overdue Payments

If Lender has not received the full monthly payment required by the Security Instrument, as described in Paragraph 4(C) of this Note, by the end of fifteen calendar days after the payment is due, Lender may collect a late charge in the amount of four

percent ([REDACTED]) of the overdue amount of each payment.

(B) Default

If Borrower defaults by failing to pay in full any monthly payment, then Lender may, except as limited by regulations of the Secretary in the case of payment defaults, require immediate payment in full of the principal balance remaining due and all accrued interest. Lender may choose not to exercise this option without waiving its rights in the event of any subsequent default. In many circumstances regulations issued by the Secretary will limit Lender's rights to require immediate payment in full in the case of payment defaults. This Note does not authorize acceleration when not permitted by HUD regulations. As used in this Note, "Secretary" means the Secretary of Housing and Urban Development or his or her designee.

(C) Payment of Costs and Expenses

If Lender has required immediate payment in full, as described above, Lender may require Borrower to pay costs and expenses including reasonable and customary attorneys' fees for enforcing this Note to the extent not prohibited by applicable law. Such fees and costs shall bear interest from the date of disbursement at the same rate as the principal of this Note.

7. WAIVERS

Borrower and any other person who has obligations under this Note waive the rights of presentment and notice of dishonor. "Presentment" means the right to require Lender to demand payment of amounts due. "Notice of dishonor" means the right to require Lender to give notice to other persons that amounts due have not been paid.

8. GIVING OF NOTICES

Unless applicable law requires a different method, any notice that must be given to Borrower under this Note will be given by delivering it or by mailing it by first class mail to Borrower at the property address above or at a different address if Borrower has given Lender a notice of Borrower's different address.

Any notice that must be given to Lender under this Note will be given by first class mail to Lender at the address stated in Paragraph 4(B) or at a different address if Borrower is given a notice of that different address.

9. OBLIGATIONS OF PERSONS UNDER THIS NOTE

If more than one person signs this Note, each person is fully and personally obligated to keep all of the promises made in this Note, including the promise to pay the full amount owed. Any person who is a guarantor, surety or endorser of this Note is also obligated to do these things. Any person who takes over these obligations, including the obligations of a guarantor, surety or endorser of this Note, is also obligated to keep all of the promises made in this Note. Lender may enforce its rights under this Note against each person individually or against all signatories together. Any one person signing this Note may be required to pay all of the amounts owed under this Note.

R.O.E

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Note.

/Ramon O. Rodriguez (Seal)
Ramon O Rodriguez -Borrower

____ (Seal)
____ -Borrower

____ (Seal)
____ -Borrower

____ (Seal)
____ -Borrower

[Sign Original Only]

☐ Refer to the attached *Signature Addendum* for additional parties and signatures.

ROR

Locus: ss Congress Place, Dedham, MA

[illegible]

00-10-2000 9 11 2000
00-10-2000 9 11 2000

RECEIVED
NOTICE OF
REGISTRATION
OF DEED

00-10-2000
00-10-2000

Please Return to:
CERUOLO, HAGSTROM & WHITE PC
111 Everett Avenue Suite 1E
Chelsea, MA 02150

Lender the principal sum of [REDACTED]
[REDACTED] Dollars
(U.S. \$ [REDACTED]). This debt is evidenced by Borrower's note dated the same date as this Security Instrument ("Note"), which provides for monthly payments, with the full debt, if not paid earlier, due and payable on **October 1, 2042**. This Security Instrument secures to Lender: (a) the repayment of the debt evidenced by the Note, with interest, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, with interest, advanced under paragraph 7 to protect the security of this Security Instrument; and (c) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower does hereby mortgage, grant and convey to MERS (solely as nominee for Lender and Lender's successors and assigns) and to the successors and assigns of MERS, with power of sale, the following described property located in **Norfolk** County, Massachusetts:

Parcel ID Number:

which has the address of **55 Congress place** [Street]
Dedham [City], Massachusetts 02026- [Zip Code]
("Property Address");

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing is referred to in this Security Instrument as the "Property." Borrower understands and agrees that MERS holds only legal title to the interests granted by Borrower in this Security Instrument; but, if necessary to comply with law or custom, MERS, (as nominee for Lender and Lender's successors and assigns), has the right: to exercise any or all of those interests, including, but not limited to, the right to foreclose and sell the Property; and to take any action required of Lender including, but not limited to, releasing or canceling this Security Instrument.

BORROWER COVENANTS that Borrower is lawfully seized of the estate hereby conveyed and has the right to mortgage, grant and convey the Property and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to any encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

Borrower and Lender covenant and agree as follows:

FHA Mortgage with MERS-MA
VMP ®
Walters Kluwer Financial Services

Revised 4/98 Amended 2/01
VM PAN(MA) (1105)
Page 2 of 11

R.O.R

Uniform Covenants.

1. **Payment of Principal, Interest and Late Charge.** Borrower shall pay when due the principal of, and interest on, the debt evidenced by the Note and late charges due under the Note.
2. **Monthly Payment of Taxes, Insurance and Other Charges.** Borrower shall include in each monthly payment, together with the principal and interest as set forth in the Note and any late charges, a sum for (a) taxes and special assessments levied or to be levied against the Property, (b) leasehold payments or ground rents on the Property, and (c) premiums for insurance required under paragraph 4. In any year in which the Lender must pay a mortgage insurance premium to the Secretary of Housing and Urban Development ("Secretary"), or in any year in which such premium would have been required if Lender still held the Security Instrument, each monthly payment shall also include either: (i) a sum for the annual mortgage insurance premium to be paid by Lender to the Secretary, or (ii) a monthly charge instead of a mortgage insurance premium if this Security Instrument is held by the Secretary, in a reasonable amount to be determined by the Secretary. Except for the monthly charge by the Secretary, these items are called "Escrow Items" and the sums paid to Lender are called "Escrow Funds."

Lender may, at any time, collect and hold amounts for Escrow Items in an aggregate amount not to exceed the maximum amount that may be required for Borrower's escrow account under the Real Estate Settlement Procedures Act of 1974, 12 U.S.C. Section 2601 *et seq.* and implementing regulations, 24 CFR Part 3500, as they may be amended from time to time ("RESPA"), except that the cushion or reserve permitted by RESPA for unanticipated disbursements or disbursements before the Borrower's payments are available in the account may not be based on amounts due for the mortgage insurance premium.

If the amounts held by Lender for Escrow Items exceed the amounts permitted to be held by RESPA, Lender shall account to Borrower for the excess funds as required by RESPA. If the amounts of funds held by Lender at any time are not sufficient to pay the Escrow Items when due, Lender may notify the Borrower and require Borrower to make up the shortage as permitted by RESPA.

The Escrow Funds are pledged as additional security for all sums secured by this Security Instrument. If Borrower tenders to Lender the full payment of all such sums, Borrower's account shall be credited with the balance remaining for all installment items (a), (b), and (c) and any mortgage insurance premium installment that Lender has not become obligated to pay to the Secretary, and Lender shall promptly refund any excess funds to Borrower. Immediately prior to a foreclosure sale of the Property or its acquisition by Lender, Borrower's account shall be credited with any balance remaining for all installments for items (a), (b), and (c).

3. **Application of Payments.** All payments under paragraphs 1 and 2 shall be applied by Lender as follows:

First, to the mortgage insurance premium to be paid by Lender to the Secretary or to the monthly charge by the Secretary instead of the monthly mortgage insurance premium;

Second, to any taxes, special assessments, leasehold payments or ground rents, and fire, flood and other hazard insurance premiums, as required;

Third, to interest due under the Note;

R.O.R

Fourth, to amortization of the principal of the Note; and

Fifth, to late charges due under the Note.

4. **Fire, Flood and Other Hazard Insurance.** Borrower shall insure all improvements on the Property, whether now in existence or subsequently erected, against any hazards, casualties, and contingencies, including fire, for which Lender requires insurance. This insurance shall be maintained in the amounts and for the periods that Lender requires. Borrower shall also insure all improvements on the Property, whether now in existence or subsequently erected, against loss by floods to the extent required by the Secretary. All insurance shall be carried with companies approved by Lender. The insurance policies and any renewals shall be held by Lender and shall include loss payable clauses in favor of, and in a form acceptable to, Lender.

In the event of loss, Borrower shall give Lender immediate notice by mail. Lender may make proof of loss if not made promptly by Borrower. Each insurance company concerned is hereby authorized and directed to make payment for such loss directly to Lender, instead of to Borrower and to Lender jointly. All or any part of the insurance proceeds may be applied by Lender, at its option, either (a) to the reduction of the indebtedness under the Note and this Security Instrument, first to any delinquent amounts applied in the order in paragraph 3, and then to prepayment of principal, or (b) to the restoration or repair of the damaged Property. Any application of the proceeds to the principal shall not extend or postpone the due date of the monthly payments which are referred to in paragraph 2, or change the amount of such payments. Any excess insurance proceeds over an amount required to pay all outstanding indebtedness under the Note and this Security Instrument shall be paid to the entity legally entitled thereto.

In the event of foreclosure of this Security Instrument or other transfer of title to the Property that extinguishes the indebtedness, all right, title and interest of Borrower in and to insurance policies in force shall pass to the purchaser.

5. **Occupancy, Preservation, Maintenance and Protection of the Property; Borrower's Loan Application; Leaseholds.** Borrower shall occupy, establish, and use the Property as Borrower's principal residence within sixty days after the execution of this Security Instrument (or within sixty days of a later sale or transfer of the Property) and shall continue to occupy the Property as Borrower's principal residence for at least one year after the date of occupancy, unless Lender determines that requirement will cause undue hardship for Borrower, or unless extenuating circumstances exist which are beyond Borrower's control. Borrower shall notify Lender of any extenuating circumstances. Borrower shall not commit waste or destroy, damage or substantially change the Property or allow the Property to deteriorate, reasonable wear and tear excepted. Lender may inspect the Property if the Property is vacant or abandoned or the loan is in default. Lender may take reasonable action to protect and preserve such vacant or abandoned Property. Borrower shall also be in default if Borrower, during the loan application process, gave materially false or inaccurate information or statements to Lender (or failed to provide Lender with any material information) in connection with the loan evidenced by the Note, including, but not limited to, representations concerning Borrower's occupancy of the Property as a principal residence. If this Security Instrument is on a leasehold, Borrower shall comply with the provisions of the lease. If Borrower acquires fee title to the Property, the leasehold and fee title shall not be merged unless Lender agrees to the merger in writing.

6. **Condemnation.** The proceeds of any award or claim for damages, direct or consequential, in connection with any condemnation or other taking of any part of the Property, or for conveyance in place of condemnation, are hereby assigned and shall be paid to Lender to the extent of the full amount of the indebtedness that remains unpaid under the Note and this Security Instrument. Lender shall apply such proceeds to the reduction of the indebtedness under the Note and this Security Instrument, first to any delinquent amounts applied in the order provided in paragraph 3, and then to prepayment of principal. Any application of the proceeds to the principal shall not extend or postpone the due date of the monthly payments, which are referred to in paragraph 2, or change the amount of such payments. Any excess proceeds over an amount required to pay all outstanding indebtedness under the Note and this Security Instrument shall be paid to the entity legally entitled thereto.

7. **Charges to Borrower and Protection of Lender's Rights in the Property.** Borrower shall pay all governmental or municipal charges, fines and impositions that are not included in paragraph 2. Borrower shall pay these obligations on time directly to the entity which is owed the payment. If failure to pay would adversely affect Lender's interest in the Property, upon Lender's request Borrower shall promptly furnish to Lender receipts evidencing these payments.

If Borrower fails to make these payments or the payments required by paragraph 2, or fails to perform any other covenants and agreements contained in this Security Instrument, or there is a legal proceeding that may significantly affect Lender's rights in the Property (such as a proceeding in bankruptcy, for condemnation or to enforce laws or regulations), then Lender may do and pay whatever is necessary to protect the value of the Property and Lender's rights in the Property, including payment of taxes, hazard insurance and other items mentioned in paragraph 2.

Any amounts disbursed by Lender under this paragraph shall become an additional debt of Borrower and be secured by this Security Instrument. These amounts shall bear interest from the date of disbursement, at the Note rate, and at the option of Lender, shall be immediately due and payable.

Borrower shall promptly discharge any lien which has priority over this Security Instrument unless Borrower: (a) agrees in writing to the payment of the obligation secured by the lien in a manner acceptable to Lender; (b) contests in good faith the lien by, or defends against enforcement of the lien in, legal proceedings which in the Lender's opinion operate to prevent the enforcement of the lien; or (c) secures from the holder of the lien an agreement satisfactory to Lender subordinating the lien to this Security Instrument. If Lender determines that any part of the Property is subject to a lien which may attain priority over this Security Instrument, Lender may give Borrower a notice identifying the lien. Borrower shall satisfy the lien or take one or more of the actions set forth above within 10 days of the giving of notice.

8. **Fees.** Lender may collect fees and charges authorized by the Secretary.

9. **Grounds for Acceleration of Debt.**

(a) **Default.** Lender may, except as limited by regulations issued by the Secretary, in the case of payment defaults, require immediate payment in full of all sums secured by this Security Instrument if:

(i) Borrower defaults by failing to pay in full any monthly payment required by this Security Instrument prior to or on the due date of the next monthly payment, or

- (ii) Borrower defaults by failing, for a period of thirty days, to perform any other obligations contained in this Security Instrument.
 - (b) **Sale Without Credit Approval.** Lender shall, if permitted by applicable law (including Section 341(d) of the Garn-St. Germain Depository Institutions Act of 1982, 12 U.S.C. 1701j-3(d)) and with the prior approval of the Secretary, require immediate payment in full of all sums secured by this Security Instrument if:
 - (i) All or part of the Property, or a beneficial interest in a trust owning all or part of the Property, is sold or otherwise transferred (other than by devise or descent), and
 - (ii) The Property is not occupied by the purchaser or grantee as his or her principal residence, or the purchaser or grantee does so occupy the Property but his or her credit has not been approved in accordance with the requirements of the Secretary.
 - (c) **No Waiver.** If circumstances occur that would permit Lender to require immediate payment in full, but Lender does not require such payments, Lender does not waive its rights with respect to subsequent events.
 - (d) **Regulations of HUD Secretary.** In many circumstances regulations issued by the Secretary will limit Lender's rights, in the case of payment defaults, to require immediate payment in full and foreclose if not paid. This Security Instrument does not authorize acceleration or foreclosure if not permitted by regulations of the Secretary.
 - (e) **Mortgage Not Insured.** Borrower agrees that if this Security Instrument and the Note are not determined to be eligible for insurance under the National Housing Act within 60 days from the date hereof, Lender may, at its option, require immediate payment in full of all sums secured by this Security Instrument. A written statement of any authorized agent of the Secretary dated subsequent to 60 days from the date hereof, declining to insure this Security Instrument and the Note, shall be deemed conclusive proof of such ineligibility. Notwithstanding the foregoing, this option may not be exercised by Lender when the unavailability of insurance is solely due to Lender's failure to remit a mortgage insurance premium to the Secretary.
10. **Reinstatement.** Borrower has a right to be reinstated if Lender has required immediate payment in full because of Borrower's failure to pay an amount due under the Note or this Security Instrument. This right applies even after foreclosure proceedings are instituted. To reinstate the Security Instrument, Borrower shall tender in a lump sum all amounts required to bring Borrower's account current including, to the extent they are obligations of Borrower under this Security Instrument, foreclosure costs and reasonable and customary attorneys' fees and expenses properly associated with the foreclosure proceeding. Upon reinstatement by Borrower, this Security Instrument and the obligations that it secures shall remain in effect as if Lender had not required immediate payment in full. However, Lender is not required to permit reinstatement if: (i) Lender has accepted reinstatement after the commencement of foreclosure proceedings within two years immediately preceding the commencement of a current foreclosure proceeding, (ii) reinstatement will preclude foreclosure on different grounds in the future, or (iii) reinstatement will adversely affect the priority of the lien created by this Security Instrument.
11. **Borrower Not Released; Forbearance By Lender Not a Waiver.** Extension of the time of payment or modification of amortization of the sums secured by this Security Instrument granted

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by Lender to any successor in interest of Borrower shall not operate to release the liability of the original Borrower or Borrower's successor in interest. Lender shall not be required to commence proceedings against any successor in interest or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy shall not be a waiver of or preclude the exercise of any right or remedy.

- 12. Successors and Assigns Bound; Joint and Several Liability; Co-Signers.** The covenants and agreements of this Security Instrument shall bind and benefit the successors and assigns of Lender and Borrower, subject to the provisions of paragraph 9(b). Borrower's covenants and agreements shall be joint and several. Any Borrower who co-signs this Security Instrument but does not execute the Note: (a) is co-signing this Security Instrument only to mortgage, grant and convey that Borrower's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower may agree to extend, modify, forbear or make any accommodations with regard to the terms of this Security Instrument or the Note without that Borrower's consent.
- 13. Notices.** Any notice to Borrower provided for in this Security Instrument shall be given by delivering it or by mailing it by first class mail unless applicable law requires use of another method. The notice shall be directed to the Property Address or any other address Borrower designates by notice to Lender. Any notice to Lender shall be given by first class mail to Lender's address stated herein or any address Lender designates by notice to Borrower. Any notice provided for in this Security Instrument shall be deemed to have been given to Borrower or Lender when given as provided in this paragraph.
- 14. Governing Law; Severability.** This Security Instrument shall be governed by Federal law and the law of the jurisdiction in which the Property is located. In the event that any provision or clause of this Security Instrument or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision. To this end the provisions of this Security Instrument and the Note are declared to be severable.
- 15. Borrower's Copy.** Borrower shall be given one conformed copy of the Note and of this Security Instrument.
- 16. Hazardous Substances.** Borrower shall not cause or permit the presence, use, disposal, storage, or release of any Hazardous Substances on or in the Property. Borrower shall not do, nor allow anyone else to do, anything affecting the Property that is in violation of any Environmental Law. The preceding two sentences shall not apply to the presence, use, or storage on the Property of small quantities of Hazardous Substances that are generally recognized to be appropriate to normal residential uses and to maintenance of the Property.

Borrower shall promptly give Lender written notice of any investigation, claim, demand, lawsuit or other action by any governmental or regulatory agency or private party involving the Property and any Hazardous Substance or Environmental Law of which Borrower has actual knowledge. If Borrower learns, or is notified by any governmental or regulatory authority, that any removal or

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other remediation of any Hazardous Substances affecting the Property is necessary, Borrower shall promptly take all necessary remedial actions in accordance with Environmental Law.

As used in this paragraph 16, "Hazardous Substances" are those substances defined as toxic or hazardous substances by Environmental Law and the following substances: gasoline, kerosene, other flammable or toxic petroleum products, toxic pesticides and herbicides, volatile solvents, materials containing asbestos or formaldehyde, and radioactive materials. As used in this paragraph 16, "Environmental Law" means federal laws and laws of the jurisdiction where the Property is located that relate to health, safety or environmental protection.

Non-Uniform Covenants. Borrower and Lender further covenant and agree as follows:

- 17. Assignment of Rents.** Borrower unconditionally assigns and transfers to Lender all the rents and revenues of the Property. Borrower authorizes Lender or Lender's agents to collect the rents and revenues and hereby directs each tenant of the Property to pay the rents to Lender or Lender's agents. However, prior to Lender's notice to Borrower of Borrower's breach of any covenant or agreement in the Security Instrument, Borrower shall collect and receive all rents and revenues of the Property as trustee for the benefit of Lender and Borrower. This assignment of rents constitutes an absolute assignment and not an assignment for additional security only.

If Lender gives notice of breach to Borrower: (a) all rents received by Borrower shall be held by Borrower as trustee for benefit of Lender only, to be applied to the sums secured by the Security Instrument; (b) Lender shall be entitled to collect and receive all of the rents of the Property; and (c) each tenant of the Property shall pay all rents due and unpaid to Lender or Lender's agent on Lender's written demand to the tenant.

Borrower has not executed any prior assignment of the rents and has not and will not perform any act that would prevent Lender from exercising its rights under this paragraph 17.

Lender shall not be required to enter upon, take control of or maintain the Property before or after giving notice of breach to Borrower. However, Lender or a judicially appointed receiver may do so at any time there is a breach. Any application of rents shall not cure or waive any default or invalidate any other right or remedy of Lender. This assignment of rents of the Property shall terminate when the debt secured by the Security Instrument is paid in full.

- 18. Foreclosure Procedure.** If Lender requires immediate payment in full under paragraph 9, Lender may invoke the **STATUTORY POWER OF SALE** and any other remedies permitted by applicable law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this paragraph 18, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the **STATUTORY POWER OF SALE**, Lender shall mail a copy of a notice of sale to Borrower, and to other persons prescribed by applicable law, in the manner provided by applicable law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by applicable law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it.

If the Lender's interest in this Security Instrument is held by the Secretary and the Secretary requires immediate payment in full under Paragraph 9, the Secretary may invoke the nonjudicial power of sale provided in the Single Family Mortgage Foreclosure Act of 1994 ("Act") (12 U.S.C. 3751 *et seq.*) by requesting a foreclosure commissioner designated under the Act to commence foreclosure and to sell the Property as provided in the Act. Nothing in the preceding sentence shall deprive the Secretary of any rights otherwise available to a Lender under this Paragraph 18 or applicable law.

19. **Release.** Upon payment of all sums secured by this Security Instrument, Lender shall discharge this Security Instrument without charge to Borrower. Borrower shall pay any recordation costs.
20. **Waivers.** Borrower waives all rights of homestead exemption in the Property and relinquishes all rights of curtesy and dower in the Property.
21. **Riders to this Security Instrument.** If one or more riders are executed by Borrower and recorded together with this Security Instrument, the covenants of each such rider shall be incorporated into and shall amend and supplement the covenants and agreements of this Security Instrument as if the rider(s) were a part of this Security Instrument. [Check applicable box(es)].

☐ Condominium Rider ☐ Growing Equity Rider ☐ Other [specify]
☐ Planned Unit Development Rider ☐ Graduated Payment Rider

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BY SIGNING BELOW, Borrower accepts and agrees to the terms contained in this Security Instrument and in any rider(s) executed by Borrower and recorded with it.

Borrower

Ramon O. Rodriguez
Ramon O Rodriguez

9/28/2012
Date
(Seal)

Date
(Seal)

Date
(Seal)

Date
(Seal)

☐ Refer to the attached *Signature Addendum* for additional parties and signatures.

Acknowledgment
State of
County of Suffolk

On this 28th day of September, 2012, before
me, the undersigned notary public, personally appeared
Ramon O Rodriguez

(name of document signer), proved to me through satisfactory evidence of identification, which were
Mass 10, to be the person whose name is signed on the
preceding or attached document, and acknowledged to me that (he) (she) signed it voluntarily for its
stated purpose.

[Signature] (official signature and seal of notary)

My Commission expires:

07-07-2017

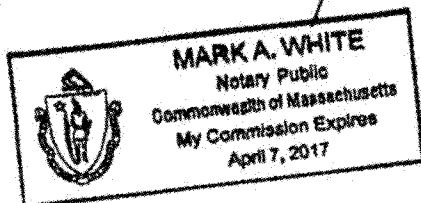


Exhibit A - Property Description

Closing Date: 09/28/2012

Borrower(s): Ramon O. Rodriguez

Property Address: 55 Congress Place, Dedham, MA 02026

The land with the buildings thereon situated in Dedham, Norfolk County, Massachusetts, being shown as parcel marked "George Lorio" (on a plan of land of Jacob and George Lorio, of Bussey Street, surveyed October 24, 1905, E. Worthington, Engineer, recorded with Norfolk County Registry of Deeds at Book 1014, Page 256), bounded and described as follows:

SOUTHEASTERLY: by a private way (now known as Bussey Place), thirty-eight and 3/10 (38.3) feet,

SOUTHWESTERLY: by a fifteen foot passageway (now known as Bussey Place), one hundred thirty-five and 8/10 (135.8) feet, more or less,

NORTHWESTERLY: by land now or formerly of Charles Els and George Lorio, shown on plan, fifty-nine and 5/10 (59.5) feet, and

NORTHEASTERLY: by parcel marked "Jacob Lorio", shown on plan, one hundred forty-six and 4/10 (146.4) feet.

Containing 6,813 square feet of land, according to said plan.

For title reference see deed recorded herewith

MASSACHUSETTS
COUNTY OF NORFOLK (REC)
LOAN NO.: [REDACTED]

WHEN RECORDED MAIL TO: ATTN: ASSIGNMENT DEPT.
FIRST AMERICAN MORTGAGE SOLUTIONS, LLC
1795 INTERNATIONAL WAY
IDAHO FALLS, ID 83402
PH. (208) 528-9895
[REDACTED]

ASSIGNMENT OF REAL ESTATE MORTGAGE

FOR VALUE RECEIVED, receipt of which is hereby acknowledged, MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. ("MERS"), AS MORTGAGEE, AS NOMINEE FOR RBS CITIZENS, N.A., ITS SUCCESSORS AND ASSIGNS, located at P.O. BOX 2026, FLINT, MICHIGAN 48501-2026, Assignor, without representation, recourse or warranty, express or implied, does hereby assign, transfer, set over, grant, and convey unto CITIZENS BANK, N.A., located at 10561 TELEGRAPH ROAD, GLEN ALLEN, VA 23059, Assignee, its successors and assigns forever, that certain Mortgage dated SEPTEMBER 28, 2012, executed by RAMON O RODRIGUEZ, Mortgagor, to MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. ("MERS"), AS MORTGAGEE, AS NOMINEE FOR RBS CITIZENS, N.A., ITS SUCCESSORS AND ASSIGNS, Original Mortgagee, and recorded on SEPTEMBER 28, 2012 in Mortgage Book 30499 at Page 166 as Document No. 119673 in the Office of the Register of Deeds for the County of NORFOLK (REC), State of MASSACHUSETTS.

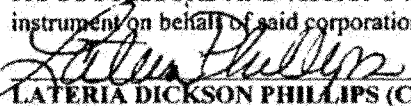
Property Address: 55 CONGRESS PLACE, DEDHAM, MA 02026
TOGETHER with all rights accrued or to accrue under said Mortgage.

IN WITNESS WHEREOF, the undersigned has caused this Instrument to be executed on 2/20/2020
MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. ("MERS"), AS MORTGAGEE, AS NOMINEE FOR RBS CITIZENS, N.A., ITS SUCCESSORS AND ASSIGNS


LINDA B JENNINGS, ASSISTANT
SECRETARY

STATE OF VIRGINIA COUNTY OF HENRICO) ss.

On 2/20/2020, before me, LATERIA DICKSON PHILLIPS, personally appeared LINDA B JENNINGS known to me to be the ASSISTANT SECRETARY of MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. ("MERS"), AS MORTGAGEE, AS NOMINEE FOR RBS CITIZENS, N.A., ITS SUCCESSORS AND ASSIGNS the corporation that executed the instrument or the person who executed the instrument on behalf of said corporation, and acknowledged to me that such corporation executed the same.


LATERIA DICKSON PHILLIPS (COMMISSION EXP.
01/31/2023)
NOTARY PUBLIC

LATERIA DICKSON PHILLIPS
NOTARY PUBLIC
REG. #7657390
COMMONWEALTH OF VIRGINIA
MY COMMISSION EXPIRES JAN. 31, 2023

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MIN: [REDACTED]

MERS PHONE: 1-888-679-6377